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Communiqué

UCI Reports foreseen by Circular CSSF 21/790 for year-ends 31 January 2025, 28 February 2025 and 31 March 2025 now available in eDesk and information on main updates

On 28 January 2025, the CSSF made available in the « Collective Investment Sector Reporting Tool » (“**CISERO**”) module on the CSSF eDesk platform the Self-Assessment Questionnaire (“**SAQ**”), the Separate Report (“**SR**”) and the Management Letter (“**ML**”) for UCIs (collectively referred to as the “**reports**”) with a financial year-end 31 January 2025, 28 February 2025 and 31 March 2025. The reports, with a financial year-end after 31 March 2025, will be made available three months before the respective year-end.

On the basis of the entry into force on 1 January 2025 of [Circular CSSF 24/856](#)

[/en/Document/circular-cssf-24-856/] concerning the protection of investors in case of an NAV calculation error, an instance of non-compliance with the investment rules and other errors at UCI level (repealing Circular CSSF 02/77) as well as the assessments made by the CSSF of the reports received from UCIs and the feedback gathered from industry participants, the CSSF did proceed to some limited updates to the reports, when compared to those in place with a financial year-end as at 31 December 2024.

These updates concern mainly the following elements:

1. Circular CSSF 24/856

With the entry into force of Circular CSSF 24/856, the SAQ and SR have been updated as follows:

– In the SAQ, the section “Investment compliance” saw the addition of a new question on the appropriate classification of the passive instances of non-compliance with the UCI investment rules in relation to the guidelines given under paragraphs 55 and 56 of Circular CSSF 24/856. The question asking for the number of active instances of non-compliance with the UCI investment rules has been removed in the context of the implementation of the [new notification forms](#)

[/en/2024/12/the-cssf-makes-available-the-procedure-for-the-notification-of-errors-and-instances-of-non-compliance-under-circular-cssf-24-856/]

The section “NAV determination” of the SAQ has been updated to take into account the extension of the scope of Circular 24/856 to other errors as governed by Chapter 6 of that circular, by adding notably a question asking whether the organisational set-up in place for the UCI provides for a formalised policy (where the formalised policy in place at the level of the investment fund manager, if applicable, should be considered when responding to this question) covering the treatment of these other errors. In the same section, the CSSF added, as a result of the guidelines under paragraphs 121 and 122 of Circular CSSF 24/856, two questions in relation to the organisational set-up and the related arrangements in place for the UCI concerning the payment of compensation when investors subscribe to units of a UCI through financial intermediaries.

– The section “Investment compliance” of the SR includes a new procedure providing, in accordance with point 143 of Circular CSSF 24/856, for a review by the statutory auditor, on the basis of a limited sample (i.e. two instances for UCITS/UCIs and one instance for SIFs/SICARs), of the appropriate classification of the instances of passive non-compliance with the UCI investment rules in accordance with the guidelines of Circular CSSF 24/856.

Furthermore, the SR review procedures concerning instances of active non-compliance with the UCI investment rules and significant NAV calculation errors have been changed by replacing the review of all errors/non-compliance (that was applicable to UCITS, UCIs Part II and SIFs) by a sample-based review of these errors/non-compliance (applicable to UCITS, UCIs Part II, SIFs and SICARs) by the statutory auditor. The review procedures set forth precise criteria governing the determination of the sample and the elements to be reviewed by the statutory auditor in accordance with a risk-based approach. For the instances of active non-compliance with the UCI investment rules, the sample is set respectively at three items for UCITS, two items for UCIs Part II, and one item for SIFs and SICARs. Regarding the significant NAV calculation errors, the sample is set respectively at two items for UCITS/UCIs Part II and one item for SIFs and SICARs.

Following the issuance of Circular CSSF 24/856, the SR procedures in relation to (i) the review of the existence of a formalised policy covering the treatment of the instances of non-compliance with the UCI investment rules and the significant NAV calculation errors and (ii) the review, on the basis of a limited sample, of the application of that policy, have been removed.

2. Other updates

Based on the supervisory experience gained by the CSSF and the feedback gathered from industry participants, the CSSF did further proceed to the following main updates:

- In the section "Valuation" of the SR, the review procedure to be carried out by the statutory auditor regarding a documented "backtesting" control for non-quoted investments has been removed. This aspect is however still included in the SAQ.
- In the section "Expenses and income" of the SR, the sample underlying the review procedure by the statutory auditor targeting non-standard costs/fees has been reduced from six items to two items.
- In the ML, two questions have been added for asking the statutory auditor, (i) whether the *dirigeants* of the UCI provided a confirmation that corrective measures have been taken to remedy to the points/findings raised in the ML and to prevent their reoccurrence and (ii) whether for points/findings with an actual significant impact on subscriptions and/or redemptions a notification has already been sent to the CSSF under Circular CSSF 02/77, respectively Circular CSSF 24/856.

The reports have further been clarified at the level of certain questions by refining their wording and/or adding/updating related tooltips.

All the updates of the reports for UCIs can be consulted under "Download empty forms as PDF" in the CISERO Dashboard.

3. New section in the CISERO Dashboard regarding the letter to be submitted to the CSSF in case of a modified audit opinion issued by the statutory auditor

The CSSF draws the attention to the implementation of a new section in the CISERO module concerning the letter to be submitted to the CSSF, in accordance with section 2.2. of Circular CSSF 21/790, in case a modified audit opinion has been issued by the statutory auditor at the level of one or more sub-funds of the UCI and/or of the UCI.

In case of such modified audit opinion, this new section will become available for the UCI in the CISERO Dashboard. It will inform that a letter must be submitted to the CSSF within one month after the publication of the concerned annual report. With the introduction of the new section, available for UCIs with a financial year-end as from 31 December 2024, UCIs must send the letter with all the supporting documents to the CSSF via the CSSF eDesk platform, thereby replacing the method of transmission set out in Circular CSSF 21/790 (i.e. *"the letter, signed by the UCI's dirigeants, must be transmitted to the CSSF at the email address: opc_sp_courrier@cssf.lu [mailto:opc_sp_courrier@cssf.lu] and all supporting information and documents must be enclosed."*). Circular CSSF 21/790 will be updated accordingly in a future review.

22 December 2021

Circular CSSF 21/790 [/en/Document/circular-cssf-21-790/]

Practical rules concerning the self-assessment questionnaire to be submitted annually by Luxembourg undertakings for collective investment. The engagement of Luxembourg undertakings for collective investments' approved statutory auditors and practical rules concerning the management letter and the separate report to be...

CSSF circular



PDF (153.34KB) [/wp-content/uploads/cssf21_790.pdf]



PDF (146.06KB) [/wp-content/uploads/cssf21_790_eng.pdf]

29 March 2024

Circular CSSF 24/856 [/en/Document/circular-cssf-24-856/]

Protection of investors in case of an NAV calculation error, an instance of non-compliance with the investment rules and other errors at UCI level

CSSF circular



PDF (492.78KB) [/wp-content/uploads/cssf24_856.pdf]



PDF (444.38KB) [/wp-content/uploads/CSSF24_856eng.pdf]

Keywords

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AIF (alternative investment fund)

[\[/en/search/AIF+%28alternative+investment+fund%29?content_keyword=7158\]](/en/search/AIF+%28alternative+investment+fund%29?content_keyword=7158)

- AML/CFT [\[/en/search/AML%2FCFT?content_keyword=1586\]](/en/search/AML%2FCFT?content_keyword=1586)

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Approved statutory auditor (réviseur d'entreprises agréé)

[\[/en/search/Approved+statutory+auditor+%28r%C3%A9viseur+d%27entreprises+agr%C3%A9%C3%A9%29?content_keyword=2701\]](/en/search/Approved+statutory+auditor+%28r%C3%A9viseur+d%27entreprises+agr%C3%A9%C3%A9%29?content_keyword=2701)

- eDesk [\[/en/search/eDesk?content_keyword=55\]](/en/search/eDesk?content_keyword=55)

Relevant for

- Investment companies in risk capital (SICARs) [\[/en/investment-vehicles-and-investment-fund-managers/\]](/en/investment-vehicles-and-investment-fund-managers/)
- Investment fund managers [\[/en/investment-vehicles-and-investment-fund-managers/\]](/en/investment-vehicles-and-investment-fund-managers/)
- Specialised investment funds (SIFs) [\[/en/investment-vehicles-and-investment-fund-managers/\]](/en/investment-vehicles-and-investment-fund-managers/)
- Undertakings for collective investment in transferable securities (UCITS) [\[/en/investment-vehicles-and-investment-fund-managers/\]](/en/investment-vehicles-and-investment-fund-managers/)
- Undertakings for collective investment subject to Part II of the Law of 17 December 2010 (Part II UCIs) [\[/en/investment-vehicles-and-investment-fund-managers/\]](/en/investment-vehicles-and-investment-fund-managers/)

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